

EU Advertiser DPA Terms — Summary

VistaPort Media Inc. — Commercial and Advertising

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Classification	Strictly Confidential — Project Atlas
Scope	EU/EEA advertising customers
Key term	Breach notification within 48-72 hours

Summary of the standard data-processing terms (the “DPA Terms”) that VistaPort agrees with EU/EEA advertising customers, alongside the master services agreement. Prepared by the Privacy Office for the diligence file. This is a summary; the executed DPA prevails.

1. Roles of the parties

The DPA Terms allocate roles under Regulation (EU) 2016/679 (GDPR). For most advertising processing each party acts as an **independent controller** of the personal data it determines the purposes and means of processing. Where VistaPort processes personal data on a customer’s documented instructions (for example, customer-provided audience lists), VistaPort acts as a **processor** and the customer as **controller**, and the Article 28 obligations below apply.

2. Article 28 processor obligations

Where VistaPort acts as processor, the DPA Terms incorporate the obligations required by **Article 28 GDPR**, including:

- Process personal data only on the controller’s documented instructions.
- Ensure persons authorised to process are bound by confidentiality.
- Implement appropriate technical and organisational security measures (Article 32).
- Engage sub-processors only with authorisation and on equivalent terms; maintain a sub-processor list.
- Assist the controller with data-subject requests and with security, breach-notification and DPIA obligations.
- Delete or return personal data at the end of the services, subject to legal retention.
- Make available information necessary to demonstrate compliance and submit to audits.

3. Personal-data breach notification

The DPA Terms require VistaPort to notify the customer of a **personal-data breach** affecting the customer’s personal data **without undue delay and in any event within 48-72 hours of becoming aware** of the breach. The notification shall describe, to the extent known, the nature of the breach, the categories and approximate number of data subjects and records concerned, the likely consequences, and the measures taken or proposed to address it. The notification duty is triggered by VistaPort becoming aware of a qualifying event, and is intended to enable the customer to meet its own regulatory obligations (including any Article 33 notification to a supervisory authority).

Event	Who notifies whom	Timing
Personal-data breach (VistaPort as processor)	VistaPort → customer	Without undue delay; within 48-72 hours of awareness
Supervisory-authority notification	Controller → authority	Within 72 hours (Article 33), where required

Event	Who notifies whom	Timing
Data-subject communication	Controller → data subjects	Without undue delay where high risk (Article 34)

4. Audit rights

The customer may audit VistaPort's compliance with the DPA Terms, including by reviewing third-party certifications and audit reports, and (on reasonable notice and subject to confidentiality) by conducting or commissioning an audit, with enhanced rights following a personal-data breach affecting the customer's data.

5. International transfers

Transfers of EU/EEA personal data outside the EEA are made under an adequacy decision or the EU Standard Contractual Clauses with a transfer risk assessment, as set out in the DPA Terms.

Summary only. The breach-notification trigger and audit rights are the principal customer-facing obligations on the EU side; the executed DPA and the relevant MSA (e.g. DR-035) govern. Prepared by Grace Okafor, Chief Privacy Officer.